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|   |                                                                     | <p>Attachment 3 and 4.) Since the Subpoena is tethered to a third-party examination under section 708.120, the scope of the Subpoena's document request is limited to whether the CB Cal possesses the Economic Commerce's property or owes Economic Commerce a debt over \$250. (See <i>Fox Johns, supra</i>, 219 Cal.App.4th at p. 1222.) "While there may be other procedures that allow [the judgment creditor] to discover the information it seeks, neither section 708.120 nor a subpoena duces tecum <i>related to that statute</i> authorizes such broad discovery." (<i>Ibid.</i>, italics added.) Thus, the requests at issue are overbroad because they are not limited to accounts reflecting funds owned by Economic Commerce or to debts owed to Economic Commerce that are in excess of \$250.</p> <p>Request Nos. 13 – 35 also seek impermissible alter-ego discovery. (See <i>Fox Johns, supra</i>, 219 Cal.App.4th at p. 1220.) Plaintiff effectively concedes it seeks alter-ego discovery of Electronic Commerce by claiming Ponder testified in deposition that Electronic Commerce's assets and liabilities were transferred to Ecom "with absolutely no compensation to Electronic Commerce" and Ecom "was 'Mr. Maraanu's company' that later 'became one' with Electronic Commerce" and, therefore, MaaRanu and Ecom are liable on Plaintiff's judgment against Electronic Commerce. (Opp., pp. 4:8-22.) Section 708.120 is "not a mechanism for a judgment creditor to . . . otherwise obtain information about entities that may be the alter ego of the judgment debtor." (<i>Fox Johns, supra</i>, 219 Cal.App.4th at p. 1220.)</p> <p>Request Nos. 13 – 35 also violate the stay of this action pending arbitration as Plaintiff is attempting to obtain direct discovery concerning MaaRanu and Ecom. Plaintiff could have obtained the same discovery during arbitration. However, to date, Plaintiff has failed to initiate arbitration despite having stipulated to do so almost two years ago. (See Mot. p. 5:14; Catanzarite Decl., ¶3; Reply p. 3:26-27.) Plaintiff has failed to explain why it has not initiated arbitration.</p> <p>The motion is GRANTED.</p> |
| 3 | <p><b>22-01289838</b></p> <p><b><i>Brown vs. Dziuk</i></b></p>      | <p><b>Motion for Ruling on Objection</b></p> <p>Plaintiff/Cross-Defendant Max Brown's Motion for Ruling on the Objections to the Statement of Decision is GRANTED.</p> <p>The Court ORDERS a hearing on the objections to the Statement of Decision and Proposed Judgment.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 4 | <p><b>21-01199592</b></p> <p><b><i>Burgos vs. Degiacomo</i></b></p> | <p><b>1) Motion for Order to Stay Proceedings</b><br/> <b>2) Motion to Vacate</b></p> <p><b>Motion 1: Motion to Vacate</b></p> <p>Plaintiff Glenda Burgos's Motion to Vacate is OFF CALENDAR.</p> <p>Plaintiff seeks an order vacating the post-trial attorney fee award entered on 3/26/26 pursuant to Code of Civil Procedure section 663.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |